

## 26AVCV00142 26AVCV00142

County: los-angeles

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Case Number: 26AVCV00142 Hearing Date: September 15, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

MARIO MENJIVAR,

Plaintiff,

v.

TINA M. HEADLEY, an individual; ESTATE OF LINDA A. GARRETT; TINA M. HEADLEY, as Administrator of the ESTATE OF LINDA A. GARRETT; and DOES 1 through 10, inclusive,

Defendants.

TINA M. HEADLEY,

Cross-Complainant,

v.

MARIO MENJIVAR III; KEVIN HERNANDEZ; and DOES 1 through 25, inclusive,

Cross-Defendants.

Case Number 26AVCV00142

[TENTATIVE]

## RULING ON DEMURRER AND MOTION TO STRIKE

Date of Hearing: September 15, 2026

Dept. A-14

Judge William H. Forman

### I. Background

This is a breach of contract action regarding probate administration and involving the real property located at 41788 156th Street East, Lancaster, CA 93535 (the Property). Cross-Defendants Mario Menjivar (Menjivar) and Kevin Hernandez (Hernandez) (together Cross-Defendants) each independently demurs to the First Amended Cross-Complaint (FACC) filed by Defendant and Cross-Complainant Tina M. Headley ("Headley" or "Cross-Complainant").

On January 28, 2026, Plaintiff Menjivar filed a complaint against Defendants Headley, as an individual and as administrator of the Estate of Linda A. Garrett (Estate), and the Estate, asserting three causes of action for (1) Breach of Contract, (2) Quiet Title, and (3) Fraud.

Menjivar asserts that Linda A. Garrett (Garrett) is the biological mother of Headley, who serves as the Administrator of the Estate, that Garrett passed away on February 22, 2024 without a will or trust, and on July 15, 2025, Menjivar and Headley agreed that Headley would file probate in the Superior Court, County of Los Angeles and sell the Property as soon as she was appointed Administrator. (Compl., ¶¶ 3-4, 8-10, Ex. 1, 2.) Menjivar asserts that Headley filed for Probate Administration on July 23, 2025, was appointed Administrator on September 25, 2025, and Menjivar and Buyer Homes Built AR, LLC (Buyer) subsequently deposited \$25,000 in earnest money to purchase the Property, which is the Estate's only asset. (Compl., ¶¶ 11, 13-14, Ex. 1.) As of July 15, 2025, Menjivar alleges the Property carried a loan balance of \$70,913.86 and fees of \$22,984.38, went into default, and on September 18, 2025, Menjivar, Buyer, and Headley agreed Menjivar would contribute \$27,498 to prevent the foreclosure of the Property, then scheduled for September 19, 2025. (Compl., ¶¶ 16-17, Ex. 4.) Menjivar alleges that Headley refused to obtain a Court-ordered surety bond for issuance of the letters, refused to approve a publication notice so the Property could be sold and Probate concluded, refused to sign off on the Notice of Sale draft publication, that the Property again went into foreclosure, forcing Menjivar and Buyer to pay \$48,490.43 to prevent the foreclosure of the Property and protect their investment, and the mortgage is now paid in full with the Property remaining as Headley's personal residence despite her agreement to sell the Property and never having made any escrow payments. (Compl., ¶¶ 20-32.)

On April 30, 2026, Headley filed an answer to the complaint and filed a Cross-Complaint against Cross-Defendants Menjivar, Hernandez, and Does 11 through 25, asserting six causes of action for (1) Breach of Fiduciary Duty, (2) Fraud and Intentional Misrepresentation, (3) Constructive Fraud, (4) Negligent Misrepresentation, (5) Unfair Business Practices (Bus. & Prof. Code § 17200), and (6) Unjust Enrichment.

On May 29, 2026, Cross-Complainant Headley filed the operative FACC, asserting the same six causes of action against the same Cross-Defendants. Cross-Complainant alleges that in July 2025, Cross-Defendants approached her representing that they could assist in the sale of the Property and navigation of the probate process, that she was in a vulnerable position with no financial resources, knowledge of the law, and facing imminent foreclosure, that on July 15, 2025, Hernandez as listing agent of record obtained her signature on a defective Residential Listing Agreement (Agreement) and related addenda despite her having no legal authority to bind the estate, and that Hernandez never submitted the Agreement to his broker, eXp Realty of California. (FACC, ¶¶ 8-10.) Cross-Complainant alleges that Cross-Defendants concealed the relationship between Menjivar and Buyer, made numerous false statements and representations based on a defective Agreement, attempted to induce her consent into signing Addendum 3 to authorize an auction of the Property after falsely stating in writing that the Addendum would not authorize a sale, and that Hernandez, without her consent, placed himself on the

escrow at Lawyers Title as her representative and, along with Buyer, refused to accept the return of Buyer's \$25,000 deposit on Cross-Complainant's request. (FACC, ¶¶ 11-21.) Finally, Cross-Complainant asserts that on May 28, 2026, eXp Realty executed a Cancellation of Listing confirming the Agreement was cancelled and of no further force or effect, no compensation was owed to the broker or any agent, and that eXp had no record of the listing until Cross-Complainant contacted the firm. (FACC, ¶ 22.)

On June 18, 2026, Cross-Defendants Menjivar and Hernandez each filed their present demurrers and motions to strike as to Cross-Complainant's FACC.

On July 7, 2026, Menjivar filed a notice of related case for Estate of Linda A. Garrett, bearing Los Angeles Superior Court Case No. 25AVPB00334.

On September 8-9, 2026, Cross-Defendants each filed a notice of non-opposition, asserting Cross-Complainant had been served with the demurrers.

No opposition has been filed to either demurrer or motion.

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## II. Preliminary Procedural Issues

Cross-Complaint's Noncompliance with Pleading Requirements – The FACC is not in compliance with the pleading requirements of the California Rules of Court, which require for all documents filed with the Court specific line spacing, consecutive line numbering and detailed placement and alignment, consecutive page numbering, a footer with the requisite specifications and containing the title of the paper, and compliance with various other formatting rules. (See Cal. Rules of Court rules 2.108 – 2.111.)

Meet and Confer Requirement – Before filing a demurrer or motion to strike, the demurring or moving party is required to meet and confer at least five days before the date the responsive pleading is due, in person, by telephone, or by video conference, with the party who filed the pleading for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a), 435.5, subd. (a).) The demurring or moving party shall file and serve with the demurrer or motion to strike a declaration stating the means by which the parties met and conferred and that the parties did not reach an agreement to resolve the issues raised, or that the party who filed the pleading demurred or objected to failed to respond or otherwise failed to meet and confer in good faith. (Ibid.)

Cross-Defendants each filed a declaration of demurring or moving party regarding meet and confer efforts, and state that Cross-Complainant failed to respond to their requests to meet and confer or otherwise failed to meet and confer in good faith. The Court finds this requirement satisfied.

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## III. Legal Standard

Standard for Demurrer – A party against whom a complaint has been filed may object by demurrer to the pleading on the ground that the pleading does not state facts sufficient to constitute a cause of action, the pleading is uncertain, or that it cannot be ascertained from the pleading whether the contract is written, oral, or implied by conduct in an action founded upon a contract. (Code Civ. Proc., § 430.10, subd. (e) – (g).) A demurrer for sufficiency tests whether the complaint states a cause

of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations reasonably, liberally, and in context. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) Courts must “treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Blank, supra, 39 Cal.3d at 318.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 126.) The threshold for meeting this burden is low, and “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Standard for Motion to Strike – A motion to strike lies where either (1) there is “irrelevant, false or improper matter inserted in any pleading,” or (2) where a pleading or part thereof is “not drawn or filed in conformity with the laws of this state, a court rule or order of court.” (Code Civ. Proc., § 436.) The Court has the authority to strike out any part of a pleading not filed in conformity with an order of the court. (See Ibid; Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 528.)

When the pleadings are defective, “the defect may be raised by demurrer or motion to strike, or by motion for judgment on the pleadings.” (Coyne v. Krempels (1950) 36 Cal.2d 257, 262.) The grounds for a motion to strike shall appear on the face of the challenged pleading or form any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).) A matter to be judicially noticed shall be specified in the notice of motion. (Code Civ. Proc., § 437, subd. (b).) The court then may strike out any irrelevant, false, or improper matter inserted in any pleading and strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend. (Perlman v. Municipal Court (1979) 99 Cal.App.3d 568, 575.)

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#### IV. Discussion

Application – Cross-Defendants demur to the FACC pursuant to Code of Civil Procedure section 430.010, subdivisions (e) – (g) on the grounds that the FAC fails to state facts sufficient to constitute a cause of action because there is no causal connection between Cross-Defendants’ alleged conduct and damages, is unintelligible, ambiguous, and uncertain as it cannot be ascertained whether an alleged contract is written, oral, or implied in fact, the FACC does not sufficiently plead the elements necessary for each cause of action, and Cross-Complainant references a probate case to which Cross-Defendants are not parties without reference to a real estate sales agreement or agreement with Cross-Defendants. (Demurrers, p. 3:5-4:24.)

##### a. Cross-Defendants’ Demurrers to the FACC

###### i. Uncertain, Ambiguous, and Unintelligible

As a preliminary matter, Defendants demur to the FACC pursuant to Code of Civil Procedure section 430.10, subdivision (f) on the basis that the FACC and allegations within are uncertain, ambiguous, and unintelligible.

"A defendant may demur to a complaint... on the ground that the 'pleading is uncertain.' (Code Civ. Proc., § 430.10, subd. (f).) The term 'uncertain' includes 'ambiguous' and 'unintelligible.' (Ibid.)." (Van Horn v. Dep't of Toxic Substances Control (2014) 231 Cal. App. 4th 1287, 1295.) A "[d]emurrer for uncertainty is directed at the allegations actually made. [Citation.] Demurrer for uncertainty does not lie as to immaterial matter. [Citation.] Nor will a demurrer for uncertainty lie where the facts are presumptively within the knowledge of the demurring parties. [Citation.]" (Dumm v. Pac. Valves (1956) 146 Cal. App. 2d 792, 799.) "A special demurrer on the ground that an answer is (a) ambiguous, (b) unintelligible, or (c) uncertain is insufficient unless the demurrer points out specifically wherein the pleading is ambiguous, uncertain or unintelligible. [Citation.]" (Coons v. Thompson (1946) 75 Cal. App. 2d 687, 690 (citation omitted).)

Cross-Defendants specifically argue the FACC is uncertain because it does not allege required facts, contains conclusory allegations, and fails to comply with the California Rules of Court's pleading standards as it has no page or line numbers. Here, the Court does not find that the FACC is so uncertain, ambiguous, or unintelligible that Cross-Defendants are not on notice of what is being alleged. Here, there are clear legal causes of action and related facts asserted throughout the pleading. Furthermore, Cross-Defendants' arguments are, in effect, that the FACC fails to plead facts sufficient to constitute a cause of action, which is an issue raised appropriately pursuant to Code of Civil Procedure section 430.010, subdivision (e), not subdivision (f).

Cross-Defendants' demurrers are **OVERRULED** to the extent the demurrers are brought pursuant to Section 430.10(f) for ambiguity. The Court will consider Cross-Defendants' arguments as to failure to state facts sufficient to support a cause of action pursuant to subdivision (e) and, where applicable, (g).

#### ii. Action Founded Upon Contract

Cross-Defendants argue that it cannot be ascertained from the FACC whether the contract referenced throughout the FACC is written, oral, or implied by conduct, and therefore the FACC is subject to demurrer. (Code Civ. Proc., § 430.010, subd. (g).) However, the FACC makes clear that the Agreement at issue is a written contract, as it alleges that Hernandez obtained Cross-Complainant's signature on the Agreement and related addenda, that the Agreement was C.A.R. Form RLA, that an addendum was also signed by Menjivar as co-agent, cites to specific paragraphs within the Agreement, and establishes that the subsequent purchase agreement presented was written. (FACC, ¶¶ 9, 11-12, 13-14.)

Cross-Defendants' demurrers are **OVERRULED** to the extent they are brought pursuant to Code of Civil Procedure section 430.010, subdivision (g).

#### iii. First Cause of Action – Breach of Fiduciary Duty

"The elements of a cause of action for breach of fiduciary duty are the existence of a fiduciary relationship, breach of fiduciary duty, and damages." (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 820.) Facts giving rise to a confidential, fiduciary or trustee relationship must be pled, and a "bare allegation that defendants assumed a fiduciary relationship" is a conclusion. (Zumbrun v. Univ. of So. Cal. (1972) 25 Cal.App.3d 1, 13.) "A fiduciary relationship is created where a person reposes trust and confidence in another and the person in whom such confidence is reposed obtains control over the other person's affairs." (Lynch v. Cruttenden & Co. (1993) 18 Cal.App.4th 802, 809.) But "[t]he mere placing of a trust in another person does not create a fiduciary relationship...[and] an agreement to communicate one's knowledge, exercising his special knowledge and skill in the area of learning concerned, does not create a trust but only a contractual obligation." (Zumbrun, supra, 25 Cal.App.3d at 13.)

Cross-Defendants argue the FACC does not plead damages connected to the allegations and does not allege what duty is owed to Cross-Complainant. (Demurrers, p. 5:19-22.)

The FACC alleges facts which, taken as true, establish the following: (1) Cross-Defendants entered into the Agreement with Cross-Complainant, establishing that Hernandez was listing agent of record and Menjivar was co-agent (FACC, ¶ 9); (2) by undertaking to act as Cross-Complainant's listing agents, Cross-Defendants assumed a fiduciary relationship with

Cross-Complainant and owed her the affirmative duties of utmost care, integrity, honesty, and loyalty under Civil Code section 2079.16 and Business and Professions Code section 10176 (FACC, ¶ 25); (3) Cross-Defendants engaged in numerous breaches of these duties supported by specific factual allegations, including, but not limited to, obtaining Cross-Complainant's signature on a defective Agreement before she had any legal authority to bind the estate in knowing violation of Probate Code section 840, failing to submit the Agreement to his broker within 72 hours of execution thereby eliminating all oversight, utilizing the improper form Agreement as required under Probate Code section 10160, failed to disclose the relationship between Menjivar and Buyer and denying the relationship when confronted, blocking the return of Buyer's deposit against Cross-Complainant's direction, filing an incorrectly prepared bond waiver petition and falsely representing that refileing was impossible, keeping Cross-Complainant legally incapacitated, and filing litigation to enforce contracts they know are void, non-compliant, and unsupported (FACC, ¶ 26); and (4) that as a direct and proximate result of these breaches, Cross-Complainant has suffered and continues to suffer damages, including the costs and burden of defending this action, loss of the ability to administer and protect her late mother's estate for nearly a year, emotional distress arising from the coordinated exploitation of her grief and financial vulnerability, and other damages in amounts to be proven at trial (FACC, ¶¶ 23, 27.)

Thus, the FACC states specific factual allegations that Cross-Defendants owed Cross-Complainant specific fiduciary duties under specific statutes as listing agents, that they breached those duties, and Cross-Defendant suffered damages as a result. (See *Branch v. Homefed Bank* (1992) 6 Cal.App.4th 793, 800 [recovery of emotional distress damages is permitted where the defendant's conduct constitutes a breach of fiduciary duties].) Moreover, "[t]he law imposes on a real estate agent 'the same obligation of undivided service and loyalty that it imposes on a trustee in favor of his beneficiary.' [Citations.] This relationship not only imposes upon him the duty of acting in the highest good faith towards his principal but precludes the agent from obtaining any advantage over the principal in any transaction had by virtue of his agency. [Citation.] 'Such an agent is charged with the duty of fullest disclosure of all material facts concerning the transaction that might affect the principal's decision.' [Citations.]" (*Roberts v. Lomanto* (2003) 112 Cal. App. 4th 1553, 1562-1563.)

Finally, "A written contract may be pleaded either by its terms—set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference—or by its legal effect. [Citation.] In order to plead a contract by its legal effect, plaintiff must 'allege the substance of its relevant terms. This is more difficult, for it requires a careful analysis of the instrument, comprehensiveness in statement, and avoidance of legal conclusions.'" (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal. App. 4th 972, 993.) Here, the legal effect of the Agreement between Cross-Complainant is sufficiently pleaded, as Cross-Complainant sets forth the exact standardized form used, certain terms under the Agreement, and the legal effect in that Cross-Defendants assumed responsibility as acting agents for the Property.

The FACC pleads facts sufficient to state a cause of action for breach of fiduciary duty. Cross-Defendants' demurrers are **OVERRULED**.

Cross-Defendants did not demur to individual causes of action asserted within the Cross-Complaint and demurred only to the Cross-Complaint as a whole on the grounds that all causes of action fail to state facts sufficient to constitute causes of action. Accordingly, that the demurrer is not sustained as to one cause of action necessarily means that Cross-Defendants' demurrer will be overruled in full. Cross-Defendant may, consistent with the Code of Civil Procedure, bring a motion for judgment on the pleadings as to such individual claims.

#### b. Cross-Defendants' Motions to Strike Portions of the FACC

Cross-Defendants also move to strike the requests for punitive damages in paragraphs 28, 34, and the Prayer for Relief in the FACC. (Mtns, p. 3:1-3.)

Punitive damages may be recovered upon a proper showing of malice, fraud, or oppression. (Civ. Code, § 3294, subd. (a).) "Malice" is defined as conduct intended to cause injury to a person or despicable conduct carried on with a willful and conscious disregard for the rights or safety of others. (*Turman v. Turning Point of Cent. Cal., Inc.* (2010) 191 Cal.App.4th 53, 63.) "Oppression" means despicable conduct subjecting a person to cruel and unjust hardship, in conscious disregard of the person's rights. (*Ibid.*) "Fraud" is an intentional misrepresentation, deceit, or concealment of a material fact known by defendant, with intent to deprive a person of property, rights or otherwise cause injury. (*Ibid.*) Conclusory allegations, devoid

of any factual assertions, are insufficient to support a conclusion that parties acted with oppression, fraud or malice. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1042.)

To succeed on a motion to strike punitive damages allegations, it must be said as a matter of law that the alleged behavior was not so vile, base, or contemptible that it would not be looked down upon and despised by ordinary decent people. (Angie M. v. Superior Court (1995) 37 Cal. App. 4th 1217, 1228-1229.) "Under the statute, malice does not require actual intent to harm. Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences. Malice may be proved either expressly through direct evidence or by implication through indirect evidence from which the jury draws inferences." (Pfeifer v. John Crane, Inc. (2013) 220 Cal. App. 4th 1270, 1299 (internal quotations omitted).)

"In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294." (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63.) "In addition to the requirement that the operative complaint set forth the elements as stated in section 3294, it must include specific factual allegations showing that defendant's conduct was oppressive, fraudulent, or malicious to support a claim for punitive damages. [Citation.] Punitive damages may not be pleaded generally." (Today's IV v. Los Angeles County Metropolitan Transportation Authority (2022) 83 Cal. App. 5th 1137, 1193.) "Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (Grieves v. Superior Court (1984) 157 Cal. App. 3d 159, 166.)

As to Cross-Complainant's request for punitive damages for Cross-Defendants' alleged breach of fiduciary duty, the FACC sufficiently alleges fraud. Indeed, breach of fiduciary duty in a confidential relationship alone is "a species of fraud," that "fraud itself implies malice," and the maintenance of breach of fiduciary duty claim based on fraud and intentional misrepresentations, wrongful conduct, and concealment in violation of these duties, where Cross-Complainant was approached by Cross-Defendants shortly after the passing of her mother so they may control Probate proceedings and engage in a conflicted sale of the Property to a listed co-agent and deprive Cross-Complainant of the Estate Property is sufficient to maintain a punitive damages request. (Nicholson v. Rose (1980) 106 Cal.App.3d 457, 462.)

For the same reasons, and because the FACC sufficiently alleges intentional fraudulent conduct on behalf of Cross-Defendants intended to deprive Cross-Complainant of her rights to the Property in the context of a fiduciary relationship, the request for punitive damages for fraud is sufficiently pled to survive Cross-Defendants' motions to strike.

Accordingly, Cross-Defendants' Motions to Strike are DENIED.

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## V. Conclusion

Cross-Defendants Kevin Hernandez and Mario Menjivar's Demurrers to the First Amended Cross-Complaint are OVERRULED.

Cross-Defendants Kevin Hernandez and Mario Menjivar's Motions to Strike Punitive Damages from the First Amended Cross-Complaint are DENIED.